IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 104

CP(CAA) No. 14/Chd/Pb/2023
(2nd Motion)

IN THE MATTER OF:

Akm Real Estate Developers Pvt. Ltd. …Transferor Company

And

Digvijay Chemicals Ltd. …Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 12.07.2024

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Petitioner	:	Mr. Rahul Jogi, Advocate Ms. Deepali Garg, Advocate
For the RD	:	Mr. Vineet Khattri, Company Prosecutor
For Transferor Company No.1	:	Mr. Yogesh Putney, Senior Standing Counsel
For Company No.2 & Transferor Company No.2	:	Mrs. Urvashi Dhugga, Senior Standing Counsel
For the OL	:	Mr. Edward Augustine George, Advocate

ORDER

Learned counsel for the parties are directed to file the response, if any within one week with a copy in advance to the counsel opposite and the affidavit that the objective of the scheme is not solely for adjusting carry forward losses by Transferor company No.1. Let the matter be listed on 19.07.2024.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (J)

Pooja